

Smt. Renuka Yadav W/O Shri Mohan Yadav ... vs Mohan Yadav S/O Shri Ramdayal Yadav on 20 October, 2021

Author: Chandra Kumar Songara

Bench: Chandra Kumar Songara

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Civil Transfer Application No. 122/2021

Smt. Renuka Yadav W/o Shri Mohan Yadav D/o Mahendra Singh Ken,
aged about 30 Years, R/o House No. 19, Gali No. 7, Adarsh Colony,
Mala Road, Kota (Raj.) At Present R/o 1514, Block-63, Omex City,
Ajmer Road, Thikariya, Jaipur.

----Applicant-non-applicant

Versus

Mohan Yadav S/o Shri Ramdayal Yadav, R/o Village Barbara, Post
Luhars, Tehsil Nadbai, District Bharatpur. Mob. - 9589674725

----Respondent-applicant

For Petitioner(s)	:	Mr. J.K. Moolchandani, Advocate
For Respondent(s)	:	Mr. Girdhar Prasad Upvanshi, Advocate (through video-conferencing)

HON'BLE MR. JUSTICE CHANDRA KUMAR SONGARA

Order

Date of Order

20th October, 2021

By the Court :

Instant transfer application under Section 24 of the Code of Civil Procedure, 1908 has been preferred on behalf of the petitioner- wife seeking transfer of the Divorce Petition bearing No.114/2019 titled as Mohan Yadav Vs. Smt. Renuka Yadav filed under Section 13 of the Hindu Marriage Act, 1955 (hereinafter referred to as 'the Act of 1955') by the respondent-husband, from the

Family Court, Bharatpur to Family Court, Jaipur.

Learned counsel appearing for the petitioner-wife has submitted that the respondent-husband had filed an application under (2 of 5) [CTA-122/2021] Section 13 of the Act of 1955 seeking decree of divorce before the learned Family Court, Bharatpur against the petitioner-wife on false and concocted facts. Counsel has further submitted that the marriage between the petitioner and the respondent was solemnized on 06.03.2016 at Bharatpur, in accordance with the Hindu rites, rituals & customs. Counsel has also submitted that on 01.08.2018 the respondent and his family members threw her out of the matrimonial home and, therefore, the petitioner lodged an F.I.R. bearing registration No.101/2019 at Women Police Station, Kota City against the respondent-husband and his family members for the offences punishable under Sections 498-A, 406, 323 and 120-B of Indian Penal Code.

Learned counsel appearing for the petitioner-wife has contended that in the aforesaid F.I.R., the Investigating Officer has already filed challan against the respondent-husband and others and for the same, trial is undergoing in the Court of Judicial Magistrate No.3, Kota (North). Counsel has further contended that the petitioner had also filed a complaint under Section 12 of the Domestic Violence Act against the respondent-husband and his family members in the Court of Judicial Magistrate No.5, Kota (North), which is still pending. Counsel has also contended that the petitioner has been deserted by the respondent since 01.08.2018 without any reason or rhyme. Since then, the petitioner was residing with her father in Kota and thereafter, the father of the petitioner purchased a plot in Omex City situated in Village Thikariya, Ajmer Road, Jaipur on 14.07.2021 and shifted in the said house, and now the petitioner is residing with her father in Jaipur.

Learned counsel appearing for the petitioner-wife has argued that presently the petitioner is living in Jaipur, as the respondent had deserted her for a long time and he has not paid any maintenance to her and, therefore, the financial condition of the petitioner is (3 of 5) [CTA-122/2021] deteriorating and she is not in a position to appear before the learned Family Court, Bharatpur for defending the case on each and every date. Counsel has further argued that the petitioner is not having any independent source of income and she is not in a position to spend huge travelling expenses for every date of hearing. Lastly, counsel has prayed that the present transfer application may be allowed.

The transfer application has been contested by the learned counsel appearing for the respondent-husband and it has been submitted on his behalf that on 02.01.2019, the father of the petitioner threatened the respondent's family members through a telephonic call, therefore, the respondent filed a complaint at Police Station, Nadbai. Counsel has further submitted that the respondent has paid Rs.4,60,000/- till today from the date of compromise order dated 14.09.2019 passed by the learned Principal Judge, Family Court, Kota in Family Miscellaneous Case No.457/2019. Counsel has also submitted that the petitioner is well educated, as she has completed her B.Sc., MBA and is well qualified to get a suitable employment.

Learned counsel appearing for the respondent-husband has contended that the father of the petitioner is receiving Rs.50,000/- to Rs.60,000/- per month as pension, as he has retired from the

post of Principal in the year 2021. Counsel has further contended that the petitioner has not submitted any relevant documents to show that she is living in Jaipur City. Counsel has also contended that the distance between Jaipur City to Bharatpur is only 183 kilometers and various transportation means are available to travel to Bharatpur for attending the case. The distance between Kota to Bharatpur is 408.5 kilometers and the petitioner have had no problems in attending the case for last three years.

Learned counsel appearing for the respondent-husband has argued that complaint under Section 12 of the Domestic Violence Act (4 of 5) [CTA-122/2021] was filed against the respondent, which is pending before the Judicial Magistrate No.5 Kota (North) and the petitioner is regularly appearing before the Judicial Magistrate No.5, Kota (North) and no transfer application has been filed to transfer the same. Lastly, counsel has prayed that the petitioner-wife has filed the present transfer application without having any reason to transfer the divorce petition from Bharatpur to Jaipur, hence, the transfer application may kindly be dismissed.

I have considered the submissions made by learned counsel appearing for the parties and have perused the material made available on record.

While dismissing the transfer application filed by the petitioner-wife, Hon'ble Apex Court in the case of Anindita Das Vs. Srijit Das, reported as (2006) 9 SCC 197, has held as under :-

"Even otherwise, it must be seen that at one stage this Court was showing leniency to ladies. But since then it has been found that a large number of transfer petitions are filed by women taking advantage of the leniency taken by this Court. On an average at least 10 to 15 transfer petitions are on Board of each Court on each admission day. It is, therefore, clear that leniency of this Court is being misused by the women."

In the present case, the petitioner-wife has not submitted any relevant documents to show that she is living in Jaipur City and the petitioner-wife has also filed a complaint under Section 12 of the Domestic Violence Act against the respondent-husband, and no transfer application was filed for transferring Criminal Case No.1371/2019 under the Domestic Violence Act, which is pending before the Judicial Magistrate No.5, Kota (North). Furthermore, the respondent-husband had paid Rs.4,60,000/- from the date of compromise order dated 14.09.2019. Copies of the order dated 14.09.2019 passed by the Family Court, Kota as well as the detailed statements of the bank have been placed on record as Annexures 2 and 3 respectively.

(5 of 5) [CTA-122/2021] In view of the above discussion, the present transfer application filed by the petitioner-wife, being devoid of any force, is hereby dismissed.

Pending applications, if any, also stand disposed of.

(CHANDRA KUMAR SONGARA),J.

ASHOK/31 Powered by TCPDF (www.tcpdf.org)